

2021 M L D 868

[Lahore]

Before Jawad Hassan, J

SHAZIA KHALID---Petitioner

Versus

HIGHER EDUCATION COMMISSION and others---Respondents

Writ Petition No.75252 of 2017, heard on 2nd December, 2020.

(a) Higher Education Commission Ordinance (LIII of 2002)---

---Preamble---Constitution of Pakistan, Art.4---Equivalence of Ph.D degree---Degree was awarded to the Assistant professor of University through distance and online learning program from a foreign university under the scholarship granted by the University---Request of the petitioner (Assistant Professor) for equivalence of her Ph.D was refused on the ground that degree-in-question was not awarded to the petitioner by any of the chartered universities and that the petitioner had taken contradictory stance in her application form submitted before the respondent-HEC---Plea of the petitioner was that no objection was raised throughout the whole process of getting Ph.D degree---Validity---Record revealed that respondent-HEC had sought information from respondent-University during scrutiny of the application submitted by the petitioner before HEC and the respondent-university replied that change of foreign university by the petitioner was not known/intimated to them---Overseas Scholarship Committee of the University, in the present case, had decided releasing of scholarship amount subject to submission of reply from the HEC, however, such reply was not available on record on the basis of which (reply) the Committee approved the scholarship amount---Record was also silent about change of study from one university to the other one by the university-respondent---Even the petitioner had not attached her complete documents while submitting application for equivalence of her Ph.D degree---High Court set aside the impugned letter refusing the request of (the petitioner) for equivalence of her Ph.D degree and directed the respondents to pass speaking order strictly after examining the record as well as hearing all concerned including the petitioner---Constitutional petition was disposed of accordingly.

(b) Constitution of Pakistan---

---Art.4---Equality of citizen---It is inalienable right of every citizen to be treated in accordance with law as envisaged by Art.4 of the Constitution---It is the duty and obligation of every public functionary to act within the four corners of the mandate of the Constitution

Saad Rasool and Shan Saeed for Petitioner.

Sajid Ijaz Hotiana for Respondent No.1.

Malik Muhammad Awais Khalid, Legal Advisor for Respondent No.3.

Rabbiya Bajwa for Applicant under Order I, Rule 10, C.P.C.

Date of hearing: 2nd December, 2020.

JUDGMENT

JAWAD HASSAN, J.----The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging order dated 10.07.2017 passed by the Respondent No.3 whereby request for equivalence of her Ph.D degree in Guidance and Counseling Physiology was refused.

2. The facts tersely revealed from the petition are that the Petitioner, while serving as Assistant Professor in Institute of Applied Sciences, University of the Punjab (the "UOP"), applied for scholarship before Overseas Scholarship and Travel Grants Committee of UOP (the "Committee") in order to pursue Ph.D Distance and Online Learning Programme, offered by the Central University of Nicaragua ("UCN") in collaboration with Texila American University, Guyana ("TAU"). The Petitioner was recommended by the Committee to the Vice Chancellor of UOP for scholarship and vide Notifications dated 28.08.2013 and 03.09.2014 granted scholarship amount in installments. She completed her degree of Ph.D on 15.12.2015 and in this respect a certificate was issued by UCN on 21.03.2017 regarding completion of degree. The Petitioner applied to the Respondent No.2 for equivalence of her degree however, her request was refused vide impugned letter on the sole ground that the decree was offered through online study only and does not fall under the approved policy of HEC. Hence this petition.

3. Learned counsel for the Petitioner inter alia contended that the impugned letter has been issued by the Respondent No.1 in violation of Higher Education Commission Ordinance, 2002 (the "Ordinance") and the policies made thereunder; that the impugned letter infringes the fundamental rights of the Petitioner guaranteed under Article 2-A, 4, 5, 9, 10-A, 18 and 25 of the Constitution; that throughout the whole process of getting Ph.D degree, the policy was neither discussed nor referred to by the Respondents and even no objection was taken by the them; that the Petitioner has been meted out with discriminatory treatment at the hands of the Respondents.

4. In reply to the petition, the report and parawise comments were filed by the Respondents denying all the allegations levelled by the Petitioner and prayed for dismissal of the petition on the inter alia that the Ph.D degree awarded to the Petitioner by the UCN and TAU was offered through online study ONLY and this fact was verified by the Respondents from the UCN and TAU through emails and as such does not fulfil the requirements of approved HEC Policy. It was further stated that the Respondent No.1 only grants equivalence to only those online/distance learning degrees which are awarded by the chartered

universities through on campus as well as distance learning mode of studies as such the Petitioner obtained Ph.D degree against the approved policy of HEC.

5. I have heard the arguments and perused the record.

6. The sole ground agitated by the Petitioner is that throughout the whole process of getting Ph.D degree, no objection was taken by the Respondents despite the fact that she was duly recommended by the Committee and scholarship grant was also sanctioned. While on the other hand, the stance of the Respondents is that the degree awarded to the Petitioner by the UCN in collaboration with TAU is offered through online study ONLY which does not meet the requirement of approved HEC policy and also the Petitioner has taken contradictory stance in her application form submitted before the Respondents-HEC. The record reveals that during scrutiny of the application submitted by the Petitioner, the Respondents-HEC had sought information from UOP vide letter dated 22.08.2016 which was replied on 05.10.2017 according to which the "Petitioner took admission in Ph.D Program of TAU in academic collaboration with UCN and it was so approved and notified. When she changed the university from TAU to UCN as not known to them as she never intimated them". It evinces from the documents submitted by the Respondents through C.M. No.05 of 2020 which includes Minutes of Meeting of the Overseas Scholarships Committee held on 06.08.2013 wherein it was decided by the Committee that the amount may be released upon submission of reply from the HEC and further clearance by the Secretary OSC. However, it is noted that neither the Respondents-HEC have attached with this petition the reply on the basis of which the amount was or was to be released nor the Respondent-UOP has stated that reply on the basis of which the Committee approved the scholarship amount. The record is also silent about transfer of study from TAU to UCN by the Respondent-UOP. Perusal of impugned letter reveals that it was issued by the Respondents-HEC in response to an application submitted by the Petitioner on 08.06.2017 however, the Petitioner has not attached her complete documents with the application before the Respondents-HEC for equivalence of Ph.D degree. It is worth mentioning that it is inalienable right of every citizen to be treated in accordance with law as envisaged by Article 4 of the Constitution. Hence, it is the duty and obligation of every public functionary, including the Respondents, to act within the four corners of the mandate of the Constitution and the Ordinance, and pass a speaking order.

10. In view of above situation, the instant petition is disposed of in the terms that the impugned letter 10.07.2017 is set aside. The concerned Respondent is directed to pass speaking order strictly as per law after hearing all concerned including the Petitioner and examining the whole record.

MQ/S-7/L

Order accordingly.